

**HOUSE SUBSTITUTE FOR
SENATE BILL NO. 18**

A bill to amend 1994 PA 203, entitled
"Foster care and adoption services act,"
(MCL 722.951 to 722.960) by adding section 8g.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 8g. (1) The department shall, on complying with the**
2 **requirements of section 8f, immediately notify the child in foster**
3 **care through the child in foster care's guardian ad litem, if one**
4 **has been appointed, and the appropriate contact at the supervising**
5 **child placement agency of any of the following:**

6 **(a) An application for benefits made on behalf of the child in**
7 **foster care or any application to become a representative payee for**
8 **those benefits on behalf of the child in foster care.**

9 **(b) A decision or communication from this state or the federal**



1 government regarding an application for benefits.

2 (c) An appeal or other action requested by the department
3 regarding an application for benefits.

4 (2) If the department serves as the representative payee or
5 otherwise receives benefits on behalf of the child in foster care,
6 the department must provide notice to the child in foster care
7 through the child in foster care's guardian ad litem, if one has
8 been appointed, and the appropriate contact at the supervising
9 child placement agency of both of the following before each
10 permanency planning hearing regarding the child in foster care:

11 (a) The date and the amount of benefit funds received on
12 behalf of the child in foster care since any previous notification
13 to the child in foster care's guardian ad litem, if one has been
14 appointed.

15 (b) Information regarding all of the child in foster care's
16 assets and resources, including the child in foster care's
17 benefits, insurance, cash assets, trust accounts, earnings, and
18 other resources.

19 (3) All payments from benefits received under this section and
20 section 8f are the property of the child in foster care.
21 Notwithstanding any provision of law to the contrary, on
22 termination of the department's responsibility for the child in
23 foster care under this section and section 8f, the department shall
24 release any funds remaining to the child's credit under the
25 requirements of the funding source or, in the absence of any
26 requirements, release the remaining funds as follows:

27 (a) To the child, if the child is at least 18 years of age or
28 is emancipated.

29 (b) To the person responsible for the child in foster care if



1 the child is under 18 years of age and is not emancipated.

2 (c) To the heirs of the child in foster care, if the child in
3 foster care dies.

4 (4) This section and section 8f do not affect any additional
5 notice required by a court of this state.

6 Enacting section 1. This amendatory act takes effect October
7 1, 2026.

8 Enacting section 2. This amendatory act does not take effect
9 unless House Bill No. 4750 of the 103rd Legislature is enacted into
10 law.